

24NWCV03161 24NWCV03161

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CR%2C08%2F13%2F2026

Source SHA-256: 40a2059067f99a09606a0397493ccf4e9db279233f3e44512edb62f41fee5fab

Case Number: 24NWCV03161 Hearing Date: August 13, 2026 Dept: R

#17

VERNOLA-SALAS v. URBAN

SOCCER 5 CENTER, LLC.

CASE NO.: 24NWCV03161

HEARING: Thursday, August

13, 2026, at 9:30 AM

I.

Defendant URBAN SOCCER 5 CENTER, LLC's Motion
for Attorney Fees is DENIED without prejudice.

II.

Plaintiff LISA MARIE VERNOLA-SALAS's Motion to
Tax Costs is GRANTED in part.

III.

Defendant URBAN SOCCER 5 CENTER, LLC's
Motion for Order Determining Distribution and Requiring Reimbursement is DENIED.

Procedural History

On September 11, 2024, Plaintiff LISA MARIE VERNOLA-SALAS,
Successor Trustee of the Vernola Family Trust ("Plaintiff") filed this
commercial unlawful detainer action against Defendants URBAN SOCCER 5 CENTER,
LLC ("Defendant") and DOES 1 through 30, inclusive.

On December 1, 2025, a jury trial commenced. The Court entered Judgment on February 26, 2026.

Attorney's Fees

The Court held that attorney's fees to Defendant as the prevailing party may be awarded in the separate suit already commenced between the parties hereto. (Judgment 02/26/26.) Thus, the Court denies Defendant's Motion without Prejudice.

Tax Costs

"A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." *Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486 (citations and quotations omitted).

"Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs." *Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308. However, "mere statements in a motion to strike and attorney declaration are insufficient to rebut the prima facie showing." *Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 896.)

Defendant has withdrawn the following costs:

1.

Item 15 (Other): \$15,106.67 in expert-witness fees.

2.

Item 13: \$391.80 in exhibit expenses.

3.

Item 11: \$3,743.50 in transcript charges.

Item 1: Filing and Motion Fees

Filing and motion fees are allowable as a right. (CCP 1033.5(a)(1).) The Court finds Defendant's filing and motion fees are adequately supported through Defendant's Memorandum of Costs. Thus, the Court does not strike Item 1.

Item 4: Deposition Costs

The costs of "[t]aking, video recording, and transcribing necessary depositions" are allowable as of right. (CCP § 1033.5(a)(3)(A).)

While the Court finds Plaintiff deposition was necessary, Defendant fails to justify why the depositions of Alex Hamiltin, Bill Bettison, Sebastien Abonnel, Todd Dixon, Goffredo Benities, and Leliani Martinez were necessary. Defendant argues it is allowed to depose "material witnesses",but fails to explain how any of these witnesses were material.

Thus, the Court taxes Item 4 by \$10,456.25.

Item 5: Service of Process

If service is by a process server registered, the recoverable cost is the amount actually incurred in effecting service, including, but not limited to, a stakeout or other means employed in locating the person to be served, unless those charges are successfully challenged by a party to the action. (CCP § 1033.5(a)(4)(B).)

The Court finds Defendant's Memorandum of Cost sufficient to justify service of process fees.

Item 11: Court Reporter Fees

Court Reporter Fees are recoverable as established by statute. (CCP § 1033.5(a)(11).)

"[I]f an official court reporter is not available, a party may arrange for, at the party's expense, the presence of a certified shorthand reporter to serve as an official pro tempore reporter. At the arranging party's request, the court shall appoint the certified shorthand reporter to be present in the courtroom and serve as the

official reporter pro tempore unless there is good cause shown for the court to refuse that appointment. The fees and charges of the certified shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law.” (Gov. Code, § 68086, subd. (d)(2); see also Cal. Rules of Court, rule 2.956(c).)

The Court finds that Defendant's Court reporter fees are recoverable.

Item 13: Models, Enlargements, and Photocopies of Exhibits

CCP § 1033.5 (a)(13) provides, “Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact.” Subdivision (b)(3) expressly prohibits costs of “[p]ostage, telephone, and photocopying charges, except for exhibits.”

“The statutory language on its face excludes unused demonstratives and photocopies of exhibits because they did not assist the trier of fact. In describing which exhibit-related costs are allowable, the Legislature used the past tense, i.e., if the items “were reasonably helpful” [citation] — not if they “would be” or “could be” reasonably helpful. Because this criterion is phrased in the past tense, it conveys that the models, enlargements of exhibits, and photocopies of exhibits must have, in fact, assisted the trier of fact.” (Segal v. ASICS America Corp. (2022) 12 Cal.5th 651, 662.) “[C]osts for models, enlargements, and photocopies of exhibits are allowable under section 1033.5(a)(13) only if they were put before the trier of fact. [Fn.] Demonstratives and photocopies of trial exhibits would not have assisted the trier of fact in resolving the pertinent factual issues in a case if they were never used.” (Id. at p. 663.)

Courts have discretion to “award costs incurred in preparing demonstratives and photocopies of trial exhibits, even though they were not ultimately used at trial, when such materials are reasonably necessary to the conduct of litigation and reasonable in amount.” (Segal v. ASICS

America Corp. (2022) 12 Cal.5th 651, 667.)

Defendant submitted documentation that the remaining \$5,775.09 concerns payment for photocopying, assembly, and enlargement of the trial exhibits. (Tatone Decl., ¶ 9.) Thus, the Court does not further tax Item 13,

Item 14: Fees for Electronic Filing or Service

Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.

Defendant fails to provide supporting documentation justifying this cost and rather just states, “The Los Angeles Superior Court requires represented parties in civil actions to file documents electronically through approved electronic filing service providers. The \$213.40 claimed is the aggregate of electronic service provider transaction fees not otherwise included in Item 1.” (Tatone Decl., ¶ 10.)

The Court taxes \$213.40 in Fees for Electronic Filing or Service.

Item 15: Other

Deposition Travel

Travel expenses to attend depositions is expressly allowed. (CCP § 1033.5(a)(C).) The \$22.35 attributed to mileage and parking to attend Plaintiff's deposition is recoverable.

Remaining Travel Costs

“The only travel expenses authorized by section 1033.5 are those to attend depositions. [Citation.] Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 775–776.)

When not related to depositions, travel for counsel or other firm employees who are not local may be recovered in the court's discretion. (Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 695 [affirming award of "travel expenses incurred by a Sacramento-based legal assistant" for trial in Los Angeles, whom opposing party argued "could have been replaced by a local legal assistant"]; Page v. Something Weird Video (C.D. Cal. 1996) 960 F.Supp. 1438, 1447.)

The Court finds the remaining costs to be for convenience and not necessary to the conduct of litigation. The Court taxes the remaining \$652.55 in attorney mileage and parking.

Courtesy Copy Deliveries

Courtesy copy fees are neither expressly allowable nor expressly prohibited under Code of Civil Procedure section 1033.5. They are not included among the items listed as allowable costs in subdivision (a), and they do not appear among the items listed as nonallowable costs in subdivision (b). Accordingly, they fall within the category of "items not mentioned in this section," which may be allowed or denied in the Court's discretion, so long as they were reasonably necessary to the conduct of the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2), (3), (4).)

Here, Defendant attests these costs were incurred to "deliver required courtesy copies of motion papers to the department in accordance with the Court's courtesy-copy requirements then in effect." (Tatone Decl., ¶ 13.) The Court exercises its discretion to award Defendant these costs.

Motion For Order Determining Distribution and Requiring Reimbursement

CCP §1170.5(c) authorizes interim deposits only upon a finding of a reasonable probability plaintiff will prevail, and only in an amount representing plaintiff's damages "by reason of the extension," to be paid into court or escrow while defendant remains in possession pending termination of the action.

CCP § 1170.5(f) provides: "After trial of the action, the court shall determine the distribution of the payment made into court or the escrow designated by the court."

During this case, the Court ordered Defendant to make payments pursuant to CCP § 1170.5(c). On December 30, 2024, the Court ordered Defendant to post a bond of \$46,652.65 with the Norwalk Court Clerk's Office. On March 19, 2025, the Court ordered Defendant to post an additional bond of \$75,000.00.

CCP § 1170.5(f)'s plain text holds that the, after trial, the Court shall determine the distribution of payment. However, CCP § 1170.5 only allows the court to determine distribution of the payment made into court or the escrow designated by the court. (Id.) Here, on March 19, 2025, the funds were released to Plaintiff. Simply put, there is nothing left to distribute. The statute does not create an independent cause of action, a restitution mechanism, or any post-disbursement remedy.

The Court does not find release of funds to be improper either. Defendant cites to an unpublished opinion to support the proposition that compensation cannot be released to the property owner until and unless it prevails in the unlawful detainer action. California Rules of Court, rule 8.1115 generally prohibits the Court or a party from relying on unpublished California Court of Appeal or superior court appellate division opinions.

Defendant has not established CCP § 1170.5(f) offers the relief requested. Defendant's Motion For Order Determining Distribution and Requiring Reimbursement is DENIED.

Conclusion

Defendant's Motion for Attorney's Fees is DENIED without prejudice.

Plaintiff's Motion to Tax Costs is GRANTED in part. These items taxed by the following amounts:

1.

Item 15 (Other): \$15,759.12.

2.

Item 13: \$391.80.

3.

Item 11: \$3,743.50.

4.

Item 4: \$10,456.25.

5.

Item 14: \$213.40.

Defendant's Memorandum of Costs is taxed in the total amount of \$30,564.07.

Defendant's Motion For Order Determining Distribution and Requiring Reimbursement is DENIED.